

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SOUTH KOREA

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## Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in South Korea, grounded in Korean law and documented campaigns

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***A note on terms.** Important terms are shown in **bold** the first time they appear, and each is defined in parentheses right where you first meet it — no flipping to the back required.*

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## INTRODUCTION & FRAMEWORK

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### Why This Matters

Community action directly determines project outcomes in South Korea. Projects that clear every economic and political hurdle still stall or die when opposition is organized, documented, and — above all — when the gaps in the proponent's own environmental paperwork are exposed inside the state's own review machinery. The record of the last decade is unambiguous: the **Jeju second airport**, a multi-trillion-won national flagship, was frozen for years because the environment ministry returned and then rejected its strategic environmental assessment — four adverse rulings across 2019-2021, citing bird habitats, endangered species, and noise the study had failed to address; the **Samcheok** nuclear plant plan was shelved after a 2014 local referendum in which residents voted overwhelmingly against it; the **Garolim Bay** tidal project lapsed after its environmental assessment was repeatedly sent back; and the **Four Major Rivers Project** — completed over massive objections — was later picked apart by the state's own audit board, with weirs opened and partial dismantlement ordered years after "completion."

But most communities don't know HOW to make opposition effective. They protest, then give up. They assume "the government will stop it" without building public pressure. They generate media coverage without a strategy. They organize people and then lose them to burnout after four months — or to obstruction-of-business complaints filed against their leaders.

**This guide shows what actually works — in the Korean system.**

### If You're New to This — Don't Be Shy

Nobody is born knowing what a strategic environmental assessment is. Seongsan's farmers weren't aviation ecologists when the second airport landed on their village; Samcheok's residents weren't nuclear analysts. They learned it — meeting by meeting, opinion by opinion — because the thing at stake was theirs. That is the only qualification this work

requires.

So if this is your first fight: don't worry, and don't be shy. You are allowed to file opinions, demand the public hearing, request the documents, call reporters, and petition the audit board. The law's participation windows exist for you, not for specialists. You will make mistakes; every winning campaign did. Start small — one conversation, one document request, one meeting — and let the guide carry you from there. You want it? Go and get it.

## The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

STEP 1: TARGET IDENTIFICATION

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STEP 2: DOCUMENTATION (proof of harm)

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STEP 3: LOCAL OPPOSITION BUILD (organized community)

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STEP 4: LEGAL CHALLENGES (regulatory / court pressure)

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STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)

Each step amplifies the others

Multi-tactic pressure compounds toward victory

**The strongest legal lever:** running through all five steps is the most consequential gate in the country — the environment ministry's **consultation (hyeobui, 협의)** over every strategic and project environmental assessment (Step 4). No approval agency can lawfully finalize a covered project until the ministry has concurred, and the ministry can demand supplements, send a study back, or reject it outright — which is precisely how the Jeju second airport was stopped in its tracks for years. A campaign that feeds the consultation gate with documented defects is fighting inside the state's own strongest mechanism.

## Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

**First, a definition.** This guide calls it a **system tilted toward approval** (sometimes called *regulatory capture* or *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because they depend on the industry's money or jobs, rely on the proponent's own information, or face strong political pressure to say yes.

In Korean development decisions, systemic bias is real and documented — a development-state tradition in which construction is macroeconomic policy; assessments written and paid for by the proponent; approval agencies (the land ministry, local governments) that double as project promoters; **national-policy projects** driven from the presidential level that compress or bulldoze review (the Four Rivers Project was pushed through assessment at extraordinary speed); courts that grant standing generously to nearby residents but rarely suspend a project mid-construction; and the routine use of **obstruction-of-business (eommu banghae)** complaints and damage suits against protest leaders.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes more expensive, takes longer, and has a lower probability of stopping a project outright — but it still routinely wins delays, modifications, buffers, monitoring, and funded oversight. And the Korean record shows something more: the consultation gate, the audit board, and local referendums have each stopped or reversed projects the political system had declared inevitable.

This is covered in Section 9. Read it before committing resources.

## HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in South Korea, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

### The levels of government — and what each one controls

South Korea concentrates more power at the national level than most democracies, but layers of local government and a distinctive review-and-audit architecture cut across it. Which body decides depends on what is being built and where.

- **The basic local government** (si/gun/gu — city, county, district, run by an elected mayor/governor and council) — controls building permits, many land-use decisions, small development approvals, and local public works. It is also, frequently, itself the proponent.
- **The metropolitan/provincial government** (the province or metropolitan city, with its elected governor/mayor) — approves mid-scale developments, urban plans, industrial complexes, and runs its own environmental offices. Special self-governing regions (Jeju, Gangwon, Sejong) hold extra devolved powers — Jeju's provincial consent, for instance, is a distinct gate in the second-airport fight.
- **The national government** — the decisive level for large projects. The sector ministries are the **approval agencies**: the **Ministry of Land, Infrastructure and Transport (MOLIT)** for airports, highways, rail, and new towns; the trade/energy ministry for power plants and transmission; others for ports, dams, and industrial policy. Standing across all of them is the **environment ministry** (recently reorganized as the Ministry of Climate, Energy and Environment), which runs the **environmental assessment system** and whose **consultation** (협의) every covered project must obtain, advised by the state's own reviewers (the **Korea Environment Institute** and the National Institute of Environmental Research). Public corporations — LH (housing/land), K-water, KEPCO and its subsidiaries, the airport corporations — execute the projects.
- **The oversight institutions** — a distinctively strong layer in Korea. The **Board of Audit and Inspection (BAI)** audits any state project (and 300 or more citizens can formally petition it to audit — the **citizens' audit request**); the **Anti-Corruption and Civil Rights Commission (ACRC — *acrc.go.kr*)** receives corruption reports and administers whistleblower protection; the **National Human Rights Commission (*humanrights.go.kr*)** takes complaints about protest policing; and the **Environmental Dispute Mediation Commissions** adjudicate pollution-damage claims outside the courts.
- **Residents and communities — rights-holders with statutory levers.** Article 35 of the Constitution guarantees every citizen the right to a healthy and pleasant environment. Residents within an assessment's affected area hold statutory participation rights (explanation sessions, hearings, written opinions) and — by settled Supreme Court doctrine — **presumed standing to sue** over the approval. Local-democracy statutes add the **local referendum**, the **residents' audit request**, and the **residents' lawsuit**. Village fishing cooperatives (**eochoongye**) hold legally compensable fishery rights that coastal projects must buy out — a hold-out point that has shaped coastal fights.

**So which level decides *your* project?** - A building, a small development, a local road → the **si/gun/gu**. - An industrial complex, a mid-size development, a provincial road → the **province/metropolitan city**. - An airport, highway, rail line, dam, power plant, new town → the **national approval agency (MOLIT or the energy ministry)** — but **no covered project escapes the environment ministry's consultation gate**. - Anything within Jeju or another special self-governing region → adds that region's own consent procedures.

## How a decision is actually made — the journey of an application

1. **Plan and designation.** The approval agency (often also the promoter) adopts a basic plan — an airport master plan, a road route, an industrial-complex designation. For plans and programs, a **strategic environmental impact assessment (SEA)** is required *at this stage*, before the plan is confirmed.
2. **Environmental assessment.** Depending on scale: the SEA for plans; the full **environmental impact assessment (EIA)** for major projects; a **small-scale EIA** for lesser ones. The proponent's consultants prepare the draft; residents in the affected area must receive an **explanation session (seolmyeonghoe)**, may submit written opinions, and — if thirty or more residents demand it — a formal **public hearing (gongcheonghoe)** must be held. Documents and consultation status publish on **EIASS (*eiass.go.kr* — the public assessment-information system, open without login)**.
3. **The consultation gate.** The approval agency must request the environment ministry's **consultation** and may not finalize approval until it concludes. The ministry — advised by KEI's technical review — can concur, concur with conditions, demand **supplementation (bowan)**, **return (banryeo)** the study, or reject it. The Jeju second airport's assessment was sent back twice in 2019, hit with supplement demands in 2020, and rejected in July 2021: four adverse rulings that froze a national flagship.
4. **Approval and permits.** With consultation concluded, the approval agency issues the project approval/plan confirmation; land expropriation, building permits, and sectoral licences follow.
5. **Construction and post-management.** The proponent must run **post-construction environmental monitoring (sahu hwangyeong yeonghyang josa)**; violations of consultation conditions are enforceable, and pollution damage during operation can go to the **dispute mediation commission**.
6. **Legal challenge.** An unlawful approval can be attacked by an **administrative revocation suit (chviso sosong)** — generally within **90 days** of learning of the disposition — with a motion to **suspend execution (jiphaeng jeongji)**; regulations by constitutional complaint; local-government acts by the residents' instruments.

## The rulebook — the policies that decide the outcome

- **The Environmental Impact Assessment Act** — the framework for SEA, EIA, and small-scale EIA, the participation

rights (explanation sessions, hearings, opinions), the consultation gate, supplementation and return, and post-management.

- **The Framework Act on Environmental Policy** — the system's principles and standards; the source of environmental quality standards.
- **The Constitution, Article 35** — every citizen's right to a healthy and pleasant environment, and the state's duty to protect it.
- **The Environmental Dispute Mediation Act** — the commissions that adjudicate pollution-damage claims cheaply and quickly, outside the courts.
- **The Administrative Litigation Act and Administrative Appeals Act** — revocation suits, the 90-day clock, suspension of execution, and the administrative-appeal alternative.
- **The Official Information Disclosure Act** — any person may request records; response due within **10 days** (one 10-day extension), through the national portal open.go.kr.
- **The Local Autonomy Act and Local Referendum Act** — residents' audit requests, residents' lawsuits, and local referendums (Samcheok's 2014 nuclear vote is the reference case).
- **The Anti-Corruption Act and the Public Interest Whistleblower Protection Act** — the citizens' audit request to the BAI, ACRC reporting channels, and whistleblower protection and rewards.

## Follow the money — why the system often leans toward “yes”

- **Construction as policy:** Korea's development-state tradition treats infrastructure as growth policy; ministries, public corporations (LH, K-water, KEPCO), and construction conglomerates form a standing coalition whose default answer is “build.”
- **Local governments** compete for projects — an airport, an industrial complex, a new town means transfers, jobs, and land-value windfalls — and often are the proponent, so the body running the explanation session wants the project.
- **The proponent pays** for the consultants who write the assessment, and the approval agency is institutionally invested in its own plan; the environment ministry's consultation is the one desk in the chain whose job is to say “not yet.”
- **National-policy projects** arrive with presidential backing and compressed timelines — the Four Rivers Project moved from announcement to construction with assessment speed that its later audits treated as a defect.

None of this makes a decision inevitable. It explains why decisions rarely tip your way on their own — it takes organised, evidenced pressure aimed at the gates that can actually say no: the consultation desk, the audit board, the courts, and the ballot.

## The overseers — who watches the decision-makers

- **The courts** — administrative courts (and the Seoul Administrative Court for most national dispositions) hear revocation suits; appeals run to the High Courts and Supreme Court; the **Constitutional Court** hears complaints against statutes and exercises of public power.
- **The Board of Audit and Inspection (BAI — bai.go.kr)** — audits legality and economy of state projects; its repeated Four Rivers audits reshaped that project's fate; 300+ citizens can petition an audit.
- **The environment ministry's consultation** itself acts as a check: an approval issued in defiance of the assessment procedure is legally vulnerable — Korean courts have treated grave assessment defects as grounds to unwind approvals.
- **The ACRC and the National Human Rights Commission** — corruption reporting and protest-rights complaints.

## The Clock — Every Deadline That Matters

Korean process runs on short, unforgiving windows, and one principle governs them all: **object early and comprehensively**. Opinions never placed in the assessment record are far weaker later — the consultation desk weighs what is in the file, and a court reviewing the disposition asks what the agency was told — so file everything, in every window, and keep every receipt and case number.

| Stage                                | Your window                                                       | The trap                                                                            |
|--------------------------------------|-------------------------------------------------------------------|-------------------------------------------------------------------------------------|
| Plan announced / EIASS entry appears | Years before ground-breaking — start now                          | The SEA happens at the <i>plan</i> stage; waiting for the project stage forfeits it |
| Draft disclosure + written opinions  | Short, set by the public notice — typically weeks                 | Miss it and your technical case never enters the record                             |
| Public-hearing demand                | <b>30+ affected-area residents</b> , during the disclosure period | The hearing must be demanded — it does not happen by default                        |
| Consultation (the ministry's 협의)     | The ministry's timeline — track it live on EIASS                  | Supplements and returns are your wins; keep feeding the record                      |
| Administrative appeal                | <b>90 days</b> from knowledge of the disposition                  | Optional but fast and cheap — don't let it eat the court clock                      |
| Revocation suit (취소소송)               | <b>90 days</b> from knowledge / 1 year from disposition           | Filing late is fatal to the claim                                                   |
| Suspension of execution (집행정지)       | Immediately, with the suit, before irreversibility                | After the site is cleared, suspension is moot                                       |
| Information disclosure (open.go.kr)  | Entity must answer in <b>10 days</b> (one 10-day extension)       | Denials are appealable — appeal them                                                |
| Dispute-mediation claim              | File promptly once harm is measured; limitation periods apply     | Unmeasured harms are uncompensable — meter first                                    |
| Citizens' audit request (BAI)        | Any time — <b>300+ petitioners</b>                                | A weak petition wastes the lever; attach the economics chapter                      |
| Post-construction monitoring         | Ongoing duty on the proponent                                     | Nobody reads the reports unless you do — read them                                  |

## QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Korea, the single biggest variable that can push a campaign above these ranges is a well-documented defect fed into the environment ministry's consultation gate (Step 4) — and, as Samcheok showed, a local referendum that turns the project into an electoral fact.

### Individual Step Success Rates

| Step                        | Success Rate | Timeline     | Cost (KRW) | What "Success" Means                        |
|-----------------------------|--------------|--------------|------------|---------------------------------------------|
| <b>Documentation Only</b>   | 5-10%        | 3-4 months   | ₩7M        | Project slowed, public awareness only       |
| <b>Opposition Only</b>      | 15-20%       | 6-12 months  | ₩24M       | Public pressure, minor modifications        |
| <b>Legal Only</b>           | 20-30%       | 12-24 months | ₩60M       | Slow process, often loses on its own        |
| <b>Media Only</b>           | 10-15%       | 3-6 months   | ₩8M        | Public knows, but no action                 |
| <b>Docs + Opposition</b>    | 25-35%       | 12 months    | ₩31M       | Slowed, some modifications                  |
| <b>Docs + Legal</b>         | 30-40%       | 12-18 months | ₩67M       | Stronger legal arguments, slower            |
| <b>Opposition + Legal</b>   | 35-45%       | 12-18 months | ₩84M       | Political pressure strengthens the case     |
| <b>Opposition + Media</b>   | 30-40%       | 9-12 months  | ₩32M       | Visibility creates political pressure       |
| <b>All 5 Steps Combined</b> | 60-75%       | 12-24 months | ₩84M       | Approval modified/denied or project delayed |

**Key insight:** All five steps together = 3-4x more effective than any single step. (And the legal line can shrink dramatically — Korea's public-interest lawyers' groups take environmental cases pro bono; see Step 4.)

## STEP 1: TARGET IDENTIFICATION

### Core Questions You Must Answer

Before you organize a single person, answer these precisely.

### Question 1: What Exactly Will Be Destroyed?

Not: “Environmental damage” But: “The runway alignment crosses the wintering grounds and flight paths of protected bird species the draft assessment never surveyed, within 2 km of a lava-cave system and groundwater recharge zone.”

Not: “Water contamination” But: “The industrial complex discharges upstream of the intake serving 40,000 people; the proponent’s own draft admits effluent ‘may temporarily exceed’ standards during commissioning.”

Not: “Community harm” But: “Blasting and a 24-hour haul route pass 250 metres from the elementary school, with predicted night noise above the residential standard for 1,800 residents.”

**Why this matters:** specific harms are easier to document, litigate, and organize around. Vague opposition dies; specific opposition survives.

### Question 2: Who Has Decision-Making Power?

You cannot pressure an abstraction. In Korea a single project often has decision-makers at three levels — identify each one by name and role:

- **National — the approval agency.** MOLIT for airports, roads, rail, new towns; the energy ministry for plants and lines; the oceans ministry for ports. The agency confirms the plan and issues the approval — and is often the promoter.
- **National — the consultation gate.** The environment ministry (through its regional environmental offices for many projects) must conclude consultation on the SEA/EIA before approval; KEI’s review advises it. Registry: **EIASS** shows the documents and the consultation status in real time.
- **Regional/local.** The province or si/gun/gu issues implementing permits and, in special self-governing regions, holds its own consent procedures (Jeju’s provincial gate on the airport). The local council can pass resolutions; the local government can demand conditions.
- **The oversight layer.** The BAI (audit on petition), the ACRC (corruption reports), the National Assembly’s standing committees and annual audit (kukjeong gamsa) — each can be aimed at the project.
- **The residents.** Thirty residents can force a public hearing; affected residents hold presumed standing to sue; local statutes open the referendum, audit-request, and residents’-suit levers.

Write it down concretely: “MOLIT must confirm the master plan; the environment ministry’s consultation on the strategic assessment is pending — EIASS shows a supplementation demand outstanding. Thirty-plus residents have demanded the hearing. The provincial council’s consent vote is scheduled for [date].”

### Question 3: What Specific Action Stops It?

Not: “Stop the project” But: “The environment ministry returns the assessment for failure to survey wintering raptors and cave-system hydrology” — or, if rejection is unrealistic, “binding consultation conditions: a 1-km school buffer, night-work prohibition, and an independent resident-participating monitoring committee with published data.”

Not: “Protect the environment” But: “The BAI opens an audit into the demand forecast and the assessment procedure on a 300-citizen petition” (a specific, winnable oversight outcome that has reshaped projects before).

**Why this matters:** you can demand something achievable. Vague demands are easy to ignore; specific demands create measurable pressure.

### Question 4: When Is the Decision Final?

Timeline tells you how much time you have. The explanation session and hearing dates are announced; written-opinion windows are short; the consultation concludes on the ministry’s schedule; and once the approval **disposition** publishes, the **90-day** revocation clock starts (one year outer limit from the disposition). Map every date: the draft-disclosure period, the hearing, the consultation status on EIASS, the approval gazette date, and the litigation deadline.

### Question 5: Are There Documented Financial Interests or Systemic Pressures?

This is the tilted-system assessment question. Know it BEFORE you organize: - Is the approval agency also the promoter (MOLIT’s airport; the local government’s complex)? - Is this a **national-policy project** with a political completion date? - Does the local government’s budget or the region’s politics depend on landing it? - Was the assessment schedule compressed; are survey seasons missing from the data? - Have opponents already been hit with obstruction-of-business complaints or damage suits? - Any officials moving between the proponent, its consultants, and the approving desks?

**Why this matters:** if the decision-makers face strong promotion pressure or the process is proponent-controlled, opposition must overcome different barriers (Section 9). It doesn’t mean opposition can’t work — it means realistic



expectations and, often, a focus on the consultation gate, the audit board, and conditions rather than an outright refusal.

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## STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

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### The Three Documentation Layers

Documentation transforms vague opposition (“This is bad”) into undeniable evidence (“This specific harm will occur to these specific people/species at these specific costs”). Success comes from three layers working together.

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### LAYER 1: BASELINE CONDITIONS DOCUMENTATION

**What it is:** comprehensive documentation of existing conditions BEFORE the project begins.

**Why it matters:** proponents claim “it’s already disturbed” or “baseline isn’t important.” Baseline documentation proves what was there — and it cannot be reconstructed later.

#### Documented case — the Jeju second airport and the assessment that wouldn’t pass

From 2015, the transport ministry drove a plan for a second Jeju airport at Seongsan — a multi-trillion-won national flagship with presidential-level backing. Residents, Jeju environmental groups, and ecologists did not merely protest: they attacked the **strategic environmental assessment’s own evidence** — documenting the bird habitats and flight paths around the site, the protected species (down to the narrow-mouthed frogs in the wetlands), the lava-cave and groundwater questions, and the noise contours the study had smoothed over.

The state’s own review machinery then did what documented defects force it to do. The environment ministry **sent the assessment back in September 2019, again in December 2019, demanded supplementation in 2020 — and on 20 July 2021 rejected it outright**, after review with the Korea Environment Institute and the National Institute of Environmental Research, citing precisely the gaps opponents had documented: bird habitats and collision risk, protected-species surveys, noise, and the airport’s environmental load. A project the political calendar had scheduled for construction sat legally frozen. Only in March 2023, after a year of supplementary research, did the ministry issue a **conditional** concurrence — with the fight then shifting to Jeju province’s own consent stage, where opposition continues.

**Why it matters for you:** the campaign identified, years in advance, the exact evidentiary gaps that the consultation gate later acted on. Documentation isn’t a formality — in Korea it is the ammunition the state’s own strongest checkpoint runs on.

**Building your own baseline (typical process).** Document existing conditions before the project starts, because a proponent will claim a site is “already disturbed” and baseline cannot be reconstructed later. A workable approach: monthly surveys across at least a full season cycle — more if you can — of the project area plus reference sites (Korean assessments have repeatedly been faulted for missing wintering and breeding seasons); a species inventory with GPS locations, flagging legally protected species and natural monuments the draft omitted; ecosystem structure (wetlands, tidal flats, forest composition — and on Jeju, gotjawal and cave systems); and measured environment (noise/vibration at the school and homes, water quality, seasonal flows) against the official environmental standards. Typical cost is around ₩5,500,000 for a consultant, GPS, meters, and lab fees — reducible with knowledgeable community members, university ecology labs, and the national groups (**KFEM**, the Korean Federation for Environmental Movements — [kfem.or.kr](http://kfem.or.kr) — and **Green Korea United** — [greenkorea.org](http://greenkorea.org) — have supported exactly this fieldwork for decades). Dated seasonal photographs and grid-referenced maps make it credible.

**A Korean strength — the resident survey record.** Because the law channels resident opinion through explanation sessions, hearings, and written submissions, everything you file becomes part of the assessment record the ministry’s reviewers read. File your baseline as written opinions, in the statutory windows, every time — the Jeju defects mattered because they were *on the record* where KEI’s reviewers work.

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### LAYER 2: IMPACT ANALYSIS

**What it is:** detailed analysis of what specific harms will occur, based on the project description plus your baseline.

**Why it matters:** it shows not just “something bad” but “specifically THIS BAD in THIS WAY.”

**The clever part — use the proponent’s own admissions.** Korean draft assessments routinely contain sentences like “some habitat loss is unavoidable” or “noise may temporarily exceed standards during construction.” Convert each admission into a quantified prediction against your baseline: - Night construction noise: predicted dB at the nearest

apartments vs. the residential standard, hour by hour - Bird-collision risk: the flight-path data the draft didn't collect, against the runway alignment - Water: discharge loads against the stream's measured seasonal flow and quality standards - **Cumulative effects:** this project *plus* the complexes, roads, and reclamations already in the basin — the recurring weak point Korean audits and reviewers cite.

**Outcome (illustrative):** a consultation desk confronted with documented gaps must demand supplementation or return the study — each supplement demand is months, each return can be a year; the Jeju assessment absorbed four adverse rulings before the project could move, and the record they created now feeds the provincial-consent fight.

**Cost-benefit:** a modest impact-analysis investment froze a multi-trillion-won flagship for years.

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## LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

**What it is:** quantification of human-health and economic costs to the community.

**Why it matters:** decision-makers respond to human cost. “X species will be affected” matters less than “an estimated 45 additional respiratory cases per year, and night-noise exposure above the standard for 1,800 residents — with the region's tourism economy, not the project, paying the bill.”

**Method:** use recognized air-quality and noise modelling plus the epidemiological literature to translate emissions and noise into health outcomes, then attach costs. Korea's own instruments help: the statutory environmental standards, the dispute-mediation commissions' published compensation criteria for noise and dust (which quantify, in won, what exposure is worth), and the public-health literature. Present it plainly: additional asthma exacerbations, sleep-disturbance and school-disruption exposure, hospital visits, lost work days — and the economic frame that has moved Korean fights: the existing economy at stake (Jeju's tourism, a coast's fishery and its *eochoongye* rights, a valley's farms) versus a project whose demand forecasts the audit board can be asked to test.

**Outcome (illustrative):** an independent health-and-economy analysis reframes the fight from “environment vs. jobs” to “existing livelihoods vs. a forecast,” gives assembly members and local politicians a defensible reason to oppose, and hands the BAI-petition drafters their economics chapter.

**Cost-benefit:** a modest health/economic-documentation investment changes the political arithmetic around the project.

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## How to Structure Your Documentation

### Phase 1: Baseline Conditions (Months 1-2)

- Hire an environmental consultant (or identify knowledgeable community members — university ecology labs, birding societies, retired engineers)
- Establish a survey schedule (full seasons — wintering and breeding windows especially)
- Create data-collection forms; document conditions; put a noise meter at the school
- **Deliverable:** 20-30 page baseline report — species/ecosystem inventory, measured noise/water data against standards, seasonal patterns, dated photographs (same locations across seasons), GPS maps

### Phase 2: Impact Analysis (Months 2-3)

- Obtain the draft assessment (from EIASS or by an information-disclosure request)
- Identify specific impacts; use baseline data to predict specific harm
- **Deliverable:** 20-30 page impact analysis — quantified predicted impacts, comparison to baseline and statutory standards, references to the draft's own admissions, maps/charts — written so its sections drop directly into written opinions and hearing testimony

### Phase 3: Health/Economic Analysis (Months 3-4)

- Identify affected populations; use the literature and the mediation commissions' compensation criteria to predict health impacts; quantify the existing economy at stake and stress-test the demand forecast
  - **Deliverable:** 15-20 page health/economic report — specific outcome predictions, cost quantification, comparison to regulatory thresholds, written for public/media — and structured to double as the annex of a citizens' audit request
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## Common Documentation Pitfalls (What Fails)

### Pitfall 1: Waiting for Perfect Data

Documented data beats perfect data that arrives after the decision. (The **Monitoring & Imagery** lens lists satellite and



web-archiving tools to watch the site over time.) A seasonal baseline in 3-4 months beats pristine data collected after the opinion window closes.

### Pitfall 2: Only Environmental Data

Decision-makers respond to budget, liability, and health as much as species. Document environmental **plus** health **plus** economic impacts — in Korea, demand-forecast and economics critiques have real teeth because the audit board tests them.

### Pitfall 3: No Peer Review

A report the reviewers can dismiss as “advocacy” becomes far stronger after an independent scientist reviews it. Budget ₩700,000-1,200,000 for review by a university ecologist or engineer; it buys credibility — the Jeju defects carried because professional ecologists stood behind them.

### Pitfall 4: Ignoring the Proponent’s Own Admissions

Quote the draft assessment against itself. Their sentence “noise may temporarily exceed standards” is an admission you build the school’s case on — and every gap the consultation desk has to chase is months of delay.

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## Documentation Budget Breakdown (KRW)

| Item                                           | Cost              | Notes                                           |
|------------------------------------------------|-------------------|-------------------------------------------------|
| Environmental consultant (80 hrs @ ₩60,000/hr) | ₩4,800,000        | Baseline survey + species ID                    |
| GPS + noise/water meters (purchase/lease)      | ₩700,000          | Mapping/measurement                             |
| Lab testing fees                               | ₩450,000          | Sampling across seasons                         |
| Peer review (independent scientist)            | ₩900,000          | Credibility + legitimacy                        |
| Printing/distribution                          | ₩350,000          | Copies for the hearing, officials, the press    |
| <b>TOTAL</b>                                   | <b>₩7,200,000</b> | Reducible using knowledgeable community members |

**Cost reduction:** if the budget is ₩3,000,000-4,000,000, use community members and a university lab for fieldwork, hire the consultant only for analysis/peer review, and lead with the strongest layer (near schools and apartments, the noise/health layer; on coasts, the fishery economy) — and ask KFEM’s local chapter or Green Korea United for technical accompaniment (the **Korea Green Foundation** — *greenfund.org* — funds citizen environmental action); supporting exactly this work is what they exist for.

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## If You Can’t Build a Whole Campaign — Smaller Moves That Still Count

Not everyone can chair an assembly or spend a year on this. An hour a week, or a single afternoon, is still useful. The most effective single act in this guide — filing a substantive objection into the official record before the deadline — takes one person and no organisation. These are the higher-leverage things one person can do, roughly ordered by effect per hour:

- **File one written objection in the participation window.** It enters the official file, the authority must respond to it, and an unanswered serious objection can become a legal defect later. Use the letter templates further down; attach one concrete fact — a figure from the study, a missing survey, the water source named. Keep the receipt.
- **Send the deadline to ten neighbours.** Forward the map’s project dot, the comment deadline, and one line on what is at stake. Ten short objections from ten households carry more weight than one long one.
- **File one information request.** Ten minutes on the FOIA channel for the full file and the correspondence. The request is on the record and the response has a legal deadline; pass whatever arrives to anyone with more time.
- **Call the right official once.** Not an email — a call to the person who represents the affected area, giving the file number and one specific ask: return the study, impose a condition, hold the hearing.
- **Give one reporter one document.** The developer’s own study admitting a harm, plus the deadline, is a story.
- **Photograph the site, dated, before work starts.** This cannot be redone later. It is baseline evidence a lawyer can use.
- **Circulate a petition aimed at the decision.** One that names the file, the ask, and the deadline, delivered before the vote, does more than a larger one that arrives after.

Each of these targets the official record and the deadline, and each works on its own. If others join, the same acts become the start of a fuller campaign.

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## STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANIZE COMMUNITIES THAT HOLD

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### Critical Insight About Organizing

**Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months** — or because leaders are worn down by obstruction-of-business complaints and damage claims. You need organizational structures that prevent burnout and that protect leaders by making decisions collective and documented.

**Korea's advantage:** you are not inventing structures. The **countermeasure committee (daechaek wiwonhoe)** — the standing Korean form for a community facing a project — the village heads' network (**tongjang/ijang**), the **eochongye** fishing cooperative with its legal rights, the farmers' and merchants' associations, and the national environmental federations with local chapters are existing forms with deep legitimacy. Build with them, not around them.

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### PHASE 1: FOUNDATION (Months 1-2)

**Goal:** a core group of 15-20 motivated people and a clear picture of their concerns.

#### Step 1a: One-on-One Conversations

People don't join movements from flyers; they join from relationships. Identify the 15-20 people most affected or interested. **Visit** each (don't rely on messages) for a one-hour conversation — at the shop, the dock, after the village meeting. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do.

Each person has a different concern (land price, noise over the school, the fishery, a way of life). Opposition organized around each shared concern is stronger than a single generic message.

#### Step 1b: Affinity Groups by Concern

Organize small groups (3-8 people) around a shared concern. People who won't unite under one banner will unite around their own stake: - **Property/compensation group** — expropriation terms, land values, relocation - **Fishery/agriculture group** — the eochongye's rights, the paddies' water, the greenhouse belt - **Health group** — noise at the school, dust, night construction, the clinic's caseload - **Environmental group** — protected species, wetlands, the coast, cumulative effects - **Elders/heritage group** — the village's graves, shrines, and the community's continuity

Each group meets monthly, strategizes how opposition serves *their* interest, and coordinates while keeping its distinct framing.

#### Step 1c: Coalition Structure (Early)

Formalize coordination between the affinity groups — in Korea, this is what the **countermeasure committee** is. Essential elements: a name; the list of participating groups (the village units, the eochongye, the merchants, the parents' association...); a decision-making process (consensus or majority vote, minuted); a meeting schedule; a communication method (the village broadcast, the KakaoTalk rooms — with discipline about what goes in writing); and a conflict-resolution process. A **written agreement** prevents "the committee fell apart because one village settled separately" — and the minutes protect leaders later, because every decision is demonstrably collective.

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### PHASE 2: PUBLIC LAUNCH (Months 2-3)

**Goal:** announce opposition to the public, the media, and decision-makers.

#### Step 2a: Community Forum

Hold a public meeting where the community explains its concerns to itself, to decision-makers, and to media — and time it against the proponent's own **explanation session**, which will otherwise be the only "participation" on the record. Where thirty or more residents demand it, force the statutory **public hearing** and treat it as your stage: coordinated, documented, expert-backed testimony.

Typical 3-hour agenda: welcome (10 min) → project explanation in plain terms (15 min) → community concern input, each person 3-5 minutes (60 min) → expert Q&A with an ecologist, a health voice, and a lawyer (20 min) → next steps (15 min). Tone: serious and informational, not emotional. Invite the local assembly members — their presence both protects and legitimates.

#### Step 2b: Opposition Materials (Factsheets)

One page. Decision-makers won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the scientific basis → contact/resources. Print 1,000, distribute at the market, the terminal, the community centre; post a digital version and pin it in the neighbourhood online cafés and KakaoTalk rooms — in Korea, the **band/café/open-chat layer is where local opinion actually forms**. Cost: ~₩350,000.

### Step 2c: Public Petition

Decision-makers count signatures. Structure: title (the specific ask) → problem statement → the specific ask (e.g., "We petition the environment ministry to return the assessment for failure to survey [X], OR to impose [named conditions]") → signature section → delivery instructions. Collect at the market and door-to-door, and file the formal versions through the national e-petition channels (the National Assembly's and the government's petition portals) where threshold-crossing petitions compel an official answer; deliver the paper stack at a public/media event. Cost: ~₩150,000.

### Step 2d: Media Coverage at Launch

Release data + petition together = a news story. (Full press-release example is in Section 8, 8G.) Call reporters first, then send the study. Expect 1-3 local/regional stories.

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## PHASE 3: COALITION EXPANSION (Months 3-6)

**Goal:** grow from 20 core people to 50+ core plus 5-10 organizations.

### Step 3a: Organization Outreach

Approach the eochongye and producer associations, neighbouring villages' committees, the religious communities (Buddhist temples, churches, Won Buddhist and Catholic justice committees have long environmental traditions in Korea), the parents' association, the regional university, and the national groups (KFEM's local chapter, Green Korea United, the Korea Green Foundation). Research each; visit the leader directly; explain how opposition serves *their* mission; make a specific, tailored ask.

Tailored asks: - **Eochongye**: "The reclamation extinguishes your legal fishing rights for a one-time payment — will the cooperative formally oppose and file its own opinion?" - **Temple / church**: "Care for creation is your mission — can you host one vigil and lend the hall for meetings?" - **Regional university**: "We need an ecologist to review the draft — can a lab take it on as a research project?" - **Parents' association**: "The haul route passes the school — will you co-sign the noise petition and speak at the hearing?"

### Step 3b: Coalition Agreements (Written)

A written document specifying how the committee works and what each organization commits to prevents later conflict. Elements: who's in; decision-making (consensus vs. vote); meeting frequency; the public message; who may speak for the committee; conflict resolution; how money is handled; an exit clause — and, in Korea, an explicit **no-separate-settlement clause**: proponents negotiate village by village, compensation package by compensation package, to split coalitions; agree in writing that no member negotiates alone and that every offer is disclosed the day it is made.

### Step 3c: Coordinated Public Work

Assign leadership by strength: ecological messaging to the environmental group and the university lab; economic/health to the producers and parents; media to whoever has the contacts; legal to the supporting lawyers' group. Sequence activities so each builds media momentum (committee launch → data release → hearing testimony → petition delivery).

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## PHASE 4: SUSTAINED PRESSURE (Months 6-12)

**Goal:** maintain organized opposition across a 12+ month timeline.

### Step 4a: Public Demonstrations

Regular, disciplined, and lawful: the Korean repertoire runs from one-person pickets (which need no assembly report) through candlelight vigils to reported assemblies under the Assembly and Demonstration Act. Structure: a fixed monthly date, visible location (the city hall plaza, the ministry's regional office), 30-60 minutes of signs and speeches. Handle logistics: the assembly report where required, marshals, a sound system within noise rules — and **document your own conduct**; in Korea, obstruction-of-business complaints and damage suits against protest leaders are a standard counter-tactic, and your own video is the defense. Momentum matters: "50 gather" becomes "the vigil grows to 500" as attendance grows.

### Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a news release tied to an event/data; weeks 2-3 social media and the local online cafés 3x/week; week 4 a reporter check-in call. Rotate release themes (petition milestone → expert finding → coalition growth → hearing testimony → economic analysis → consultation-status change on EIASS).

#### Step 4c: Common Opposition Failure Points (How to Prevent)

**Failure Point 1: Burnout (Months 4-8).** Prevent it: monthly (not weekly) general meetings; celebrate milestones; fund one part-time organizer (~₩800,000/month) so volunteers don't carry logistics; schedule explicit breaks around the fishing and farming calendar; keep a public progress tracker.

**Failure Point 2: Coalition Conflict.** Prevent it with a written agreement and decision process, a clear escalation path (discuss → a respected mediator, often a religious leader), an explicit exit clause, and rotating leadership so no single village or organization controls the committee.

**Failure Point 3: The Compensation Split.** The proponent's community-relations machine will offer packages village by village and rights-holder by rights-holder. Prevent it with the no-separate-settlement clause, immediate disclosure of every offer, and a shared position on what collective terms (buffers, monitoring, funds) would even be discussable.

**Failure Point 4: Criminalization of Leaders.** Obstruction-of-business complaints, summonses, and damage suits against visible leaders are a documented pattern in Korean siting conflicts. Prevent the damage: collective, minuted decision-making; rotating spokespeople; an established relationship with a public-interest lawyers' group (**Minbyun** — [minbyun.or.kr](http://minbyun.or.kr); **GongGam** — [kpil.org](http://kpil.org)) **before** any complaint arrives; and immediate legal counsel for any summons.

**Failure Point 5: No Clear Wins.** Prevent hopelessness by naming milestones as victories (the forced hearing, 1,000 signatures, a supplementation demand appearing on EIASS, the audit petition filed) and publicizing cumulative progress.

#### Opposition Building Budget: Year-Long Campaign (KRW)

| Item                                                  | Cost               |
|-------------------------------------------------------|--------------------|
| Factsheet printing (1,000 copies)                     | ₩400,000           |
| Website/online-café/e-mail (annual)                   | ₩300,000           |
| Meeting supplies (hall, refreshments)                 | ₩500,000           |
| Outreach transportation                               | ₩700,000           |
| Petition collection supplies                          | ₩150,000           |
| Vigil/assembly supplies (banners, sound)              | ₩900,000           |
| Coalition meeting expenses                            | ₩400,000           |
| Part-time organizer stipend (₩800,000/month × 12)     | ₩9,600,000         |
| Communications support (3 months part-time)           | ₩2,600,000         |
| Fundraiser/event costs                                | ₩1,200,000         |
| Legal-defense reserve for leaders (retainer/expenses) | ₩7,000,000         |
| <b>TOTAL</b>                                          | <b>₩23,750,000</b> |

**Reductions:** drop the paid organizer to run a shorter 6-month campaign, or use a volunteer coordinator, to cut ~₩9,000,000; the legal-defense reserve shrinks if a pro-bono group commits early.

**Funding the campaign.** Money typically comes from four places: individual and village contributions (agreed quotas, the fundraising dinner, online small-donor drives — Korean campaigns crowdfund well); grants from environmental and public-interest foundations (the Korea Green Foundation and Beautiful Foundation fund citizen action; apply early); benefit events; and in-kind support from coalition organizations (halls, transport, professional time). Aim to raise half the budget by month 6 and the rest by month 12.

## STEP 4: LEGAL CHALLENGES — HOW TO USE KOREA'S REGULATORS AND COURTS

**Who fights beside you — and for free.** A strong case in Korea is not gated by the ability to pay, because the public-interest bar takes community environmental cases pro bono. Know them now, before you need them: - **Minbyun — Lawyers for a Democratic Society** ([minbyun.or.kr](http://minbyun.or.kr)) — the public-interest bar association; its environment committee litigates siting and pollution cases. - **GongGam Human Rights Law Foundation** ([kpil.org](http://kpil.org)) — Korea's first public-interest law foundation. - **The environmental federations' affiliated lawyers** — KFEM ([kfem.or.kr](http://kfem.or.kr)) and Green Korea United

([greenkorea.org](http://greenkorea.org)) connect local fights to counsel and experts. - **Korea Legal Aid Corporation** ([klac.or.kr](http://klac.or.kr)) — state legal aid for qualifying individuals. Experienced specialist counsel measurably outperforms generalists, and self-representation fares worst — which is exactly why these organizations matter.

Korean legal strategy has three tracks, and one of them — the consultation gate — is uniquely powerful.

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## TRACK 1: REGULATORY PARTICIPATION (the front door)

The assessment system builds public participation into the process, and using it well creates the record you will need later.

**The statutory windows.** During draft disclosure, residents of the affected area may file **written opinions**; the proponent must hold the **explanation session**; and **thirty or more residents can compel a formal public hearing**. Every opinion filed becomes part of the record the environment ministry's reviewers read — file specific, evidence-based submissions in every window; cite your Step 2 documentation, the statutory standards, and the draft's own admissions. Track the file in real time on **EIASS**, which publishes documents and consultation status.

**The oversight petitions.** Two Korean instruments have no equivalent in most systems: the **citizens' audit request** (300 or more citizens can petition the Board of Audit and Inspection to audit a public project — the instrument aimed repeatedly at the Four Rivers Project) and the **residents' audit request** to a local government's supervising authority, which can be followed by a **residents' lawsuit** over illegal local spending. The National Assembly's annual audit season (kukjeong gamsa) is a further pressure point: a sympathetic assembly member can summon the project's officials and put your documents on the national record.

**The mediation commissions.** The **Environmental Dispute Mediation Commissions** (central and regional) adjudicate pollution-damage claims — noise, vibration, dust, water — cheaply, quickly, and without a court. They cannot cancel an approval, but their compensation rulings (with published criteria) monetize the project's harms, generate quotable official findings, and pressure proponents to change methods. For construction-phase harms, file early and file collectively.

**Why this track matters:** filing well — specific, on time, grounded in evidence — often does more than filing loudly, and it lays the foundation for Tracks 2 and 3.

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## TRACK 2: THE CONSULTATION GATE — KOREA'S STRONGEST LEVER

**This is the most powerful tool in Korean practice for communities affected by development. Understand it before anything else.**

Under the Environmental Impact Assessment Act, an approval agency may not finalize a covered plan or project until the environment ministry's **consultation** (협의) on the assessment has concluded. The ministry — advised by the Korea Environment Institute's technical review — can concur, attach conditions, demand **supplementation**, **return** the study, or reject it. This is not a comment box; it is a legal precondition, and it belongs to a *different ministry* than the one promoting the project.

**What it means in practice:** - When the documented record shows the assessment failed to survey what it had to survey, the gate acts. The reference case is the **Jeju second airport**: returned September 2019, returned December 2019, supplementation demanded in 2020, **rejected 20 July 2021** — years of legal freeze on a national flagship, on exactly the defects residents and ecologists had put on the record. The 2023 concurrence came conditioned, and the fight moved to the provincial-consent stage. The **Garolim Bay** tidal project never got through at all — its assessment was repeatedly sent back until the project lapsed. - **The gate is not a veto you control.** The ministry can ultimately concur — as it conditionally did on Jeju in 2023 — and political pressure on the ministry is real. Campaigns that treat a return as final get blindsided; treat every return as time won and record built. - **Feed it, don't just petition it.** The gate runs on the record: your written opinions, hearing testimony, and expert reports are what KEI's reviewers weigh against the proponent's draft. A defect that exists only in a press release does not exist; a defect filed in the statutory window does.

**How the local-democracy levers complete this track:** where a project needs local consent or local politics to survive, Korean law hands residents direct instruments — the **local referendum** (Samcheok's 2014 vote against the nuclear plant, with overwhelming opposition on a large turnout, made the plan politically untenable; it was dropped from national energy planning in the 2017 policy shift), council resolutions, and the recall of local officials. These don't legally bind national ministries — Samcheok's vote was formally advisory — but they convert a siting question into an electoral fact no politician can ignore.

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## TRACK 3: ADMINISTRATIVE LITIGATION AND STATUTORY CHALLENGES

Most legal challenges to Korean approvals are **revocation suits (chwisō sosong)** in the administrative courts — asking

the court to annul the disposition as unlawful — generally within **90 days** of learning of it (one year outer limit), optionally preceded by an administrative appeal. A motion to **suspend execution (jiphaeng jeongji)** can freeze works pending judgment where irreparable harm looms — courts grant it sparingly, so move immediately, before concrete is poured.

There are, functionally, three sub-types:

### **TYPE 1: REGULATORY / ADMINISTRATIVE CHALLENGE (fastest, cheapest)**

Attack the disposition through the administrative-appeal commissions or a prompt revocation suit where the process violated the statute: required explanation sessions or hearings skipped or gutted; the assessment finalized without the required consultation; opinion windows cut short. Korean courts treat the assessment procedure seriously — approvals resting on gravely defective assessments are legally vulnerable — while merely *imperfect* assessments often survive; the closer your challenge sits to a hard procedural breach, the stronger it is. File within the 90 days, pairing it with your Track 1 record.

### **TYPE 2: MERITS / RIGHTS LITIGATION (longer, more expensive)**

File the revocation suit on substantive illegality — the approval ignored mandatory standards, protected-area rules, or the assessment's own conditions — with the suspension motion where harm is imminent. **Standing doctrine is your friend:** by settled Supreme Court precedent, residents **within the assessed affected area are presumed to have standing** to challenge the approval; residents outside it must prove concrete individual harm. (This is why the affected-area boundary in the assessment is itself worth fighting over in Track 1.) Constitutional complaints reach statutes and exercises of public power; Article 35's environmental right frames the argument, though Korean courts decide on statutes, not the right alone. Know the cautionary tale: the **Cheonseong Mountain "salamander" suit** — brought partly in the name of the salamanders — was rejected on standing; nature cannot sue in Korea, so build your case on the residents the doctrine actually protects.

### **TYPE 3: POST-APPROVAL / COMPLIANCE CHALLENGE (highest success rate)**

Once a project is built or building, attack breach of its own instrument: violations of consultation conditions and the post-construction monitoring duties; permit exceedances; unauthorized design changes. Enforcement complaints to the environment offices, mediation-commission claims for the measured harms, and — for the project's economics and legality — the **citizens' audit request**. The Four Rivers Project's afterlife is the proof: the state's own audit board examined it repeatedly across successive administrations, findings that fed the later decisions to open the weirs and partially dismantle two of them. These challenges have the highest success rate because the violation is concrete and documented.

**Standing.** Presumed for affected-area residents (above); organizations typically sue through affected members; there is no general public-interest environmental standing — the residents themselves are the case.

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## **Legal Strategy Decision Tree**



START: Is the assessment under review (draft disclosed / hearing pending / consultation open)?  
└ YES → File written opinions NOW; if 30+ residents, compel the hearing (Track 1). Build the record.  
└ NO → Identify the pending disposition and its 90-day clock; check EIASS for status.

Q1: Are the assessment's own surveys and data defective on matters the ministry must weigh?  
└ YES → Aim everything at the consultation gate (Track 2): opinions, expert reports, meetings with the reviewing office. This is often the strongest available lever.  
└ NO / UNCLEAR → Continue.

Q2: Is there a clear legal defect in the disposition?  
└ NO (process followed, you just disagree) → No strong suit; focus on opposition + media + the audit petition and local-democracy levers.  
└ UNCLEAR → Free initial consult with a public-interest lawyers' group (below).  
└ YES → Continue.

Q3: Budget available?  
└ W0 → Approach Minbyun / GongGam / the federations' lawyers (pro bono); Track 1 + audit petition.  
└ W0-5M → Administrative appeal + early revocation suit with pro-bono help; file within 90 days.  
└ W5-30M → Revocation suit + suspension motion, combined with opposition.  
└ W30M+ → Full litigation + suspension; timeline 12-24 months; pair with opposition + media.

Q4: Is the harm imminent/irreversible once construction starts?  
└ YES → Move for suspension of execution immediately.  
└ NO → The suit proceeds on the normal timeline.

RECOMMENDED PATHS  
Path A – Strong procedural defect + limited budget:  
Track 1 opinions + prompt revocation suit (pro bono) + build opposition.  
Path B – Defective assessment data:  
Feed the consultation gate (Track 2) + Track 1 + media. Highest ceiling – the Jeju path.  
Path C – Weak legal case:  
Don't litigate. Focus on opposition + media + the audit and referendum levers to create political cost and win conditions.

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## Litigation Success Factors

Litigation succeeds when **combined** with the other steps: - Litigation alone: 20-30% - Litigation + opposition: 35-45% - Litigation + opposition + media: 50-70% - A campaign aimed at the **consultation gate** with documented survey defects: can exceed these, because the ministry's concurrence is a precondition the promoting agency cannot skip and the reviewing institute answers to the record, not the schedule.

A judge — or a reviewing office — that sees a serious claim **plus** visible community opposition **plus** media coverage treats the matter as serious. The Jeju freeze is the clearest Korean illustration of the combined machine: documented ecological gaps (documentation), an organized and persistent island opposition (organization), national coverage (media) — and an assessment that could not clear the state's own gate for four years.

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## What to Avoid: Legal Failures

- **Litigating instead of organizing.** A lone technical claim with no visible opposition and no media reads as a niche dispute. Build opposition first; litigate with it visible.
- **Litigating too late.** Miss the 90-day window or move for suspension after the site is cleared and you're reduced to compensation. Act within the statutory deadline, before irreversibility.
- **Weak arguments.** "This project is bad for the environment" is a policy opinion. "The approval was finalized before the consultation concluded, and the hearing that thirty residents demanded was never held" is a legal claim a court can rule on.
- **Suing in the wrong name.** The salamander lost. Sue through the affected-area residents the standing doctrine protects — not in the name of nature, and not through outsiders who must prove what insiders are presumed to have.

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## Turning Your Evidence Into the Arguments That Work

How the evidence is framed decides most cases. One pattern holds across jurisdictions: courts rule for challengers on procedure and specific legal duties more often than on the merits of the science. A judge will rule that a required step was skipped, but is reluctant to substitute their own judgment for the agency's on whether a project is too harmful. Aim the strongest evidence at the arguments courts will grant. In rough order of reliability:

1. **A required procedure was skipped or faked** — a mandatory hearing never held or staged, a comment period cut short, an approval issued before a required review concluded, notice never properly given. This is the most reliable ground. Build it from the official file and correspondence (Public Records & FOIA lens) and your own record of the participation windows.

2. **Serious objections went unanswered.** Where the authority must consider substantive objections, an approval that ignored them is exposed. This is one reason to file written observations even when it feels futile — they become the record the court reads.
3. **A hard legal standard was breached** — a protected-area or setback rule, a pollution limit, a forbidden activity in a protected zone, a bonding or insurance requirement never met. These are the strongest substantive arguments, because they ask the judge to read a rule, not weigh science. Build it from the study's own admissions set against the limit, your baseline data, and the register that defines the standard (Environmental & Regulatory lens).
4. **The study was legally defective** — missing seasonal surveys, no cumulative-impact analysis, ignored alternatives, a baseline too thin to support the conclusion. Build it from the developer's study read against your independent baseline and expert review (one credible expert report anchors the case).
5. **Required consultation of affected or Indigenous communities was skipped.** Where consultation is legally owed and was omitted or reduced to a formality, that alone can void an approval and it draws outside attention.
6. **The decision-maker was biased or conflicted** — an undisclosed financial interest, a decision that overrode the technical staff without reason, the revolving door. Build it from the ownership timeline, asset declarations, and corporate records (Property & Financial, Corporate & Ownership, and Contracts & Money lenses).

Two rules carry across all six. Where you can phrase a point as “a rule was broken,” do — it is more winnable than “the agency was wrong.” And where your jurisdiction recognises a precautionary principle, argue that a credible risk of serious or irreversible harm justifies protection; you need not prove the harm is certain. File before the harm is irreversible: a court protects what still exists more readily than it restores what is gone, so an injunction or suspension sought before the ground is cleared is the request that most often works, and it buys the time a full case takes.

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## STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

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Korea has a dense, competitive media ecosystem that covers exactly these fights — and a documented record of that coverage changing outcomes.

### How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (there's a real dispute), (5) **new information** (this was not known before). What they don't care about: your opinion, how angry you are, vague statements, or meetings with no news hook.

### The Newsworthiness Formula

**NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION**

- **Bad:** “Residents oppose the airport.” (no data, no specific consequence, no timeliness, nothing new) → ignored.
- **Good:** “Independent survey finds protected-species habitat the assessment omitted; the ministry's consultation decision is due within weeks.” (data + consequence + timeliness + new info) → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

### Know the Outlets That Cover This Beat

The **Watchdogs & Databases** lens on the map lists the investigative outlets and reference collections that cover this beat where you are.

- **Newstapa (KCIJ)** (*newstapa.org*) — the Korea Center for Investigative Journalism: non-profit, member-funded, built to hold power to account; the natural home for a documented misconduct story.
- **The Hankyoreh** and **Kyunghyang Shinmun** — national dailies with strong environment and social-conflict desks that have covered every major siting fight.
- **OhmyNews** — citizen-journalism pioneer; publishes community voices directly.
- **Broadcast current-affairs programs** (KBS, MBC's investigative strands, JTBC) — a single deep-dive segment can nationalize a local fight.
- **The regional press and local broadcasters** — in siting conflicts, the Jeju, Gangwon, and provincial papers often carry the running story the national desks pick up.

### Building Reporter Relationships (The Key)

Reporters don't call opposition for comment; opposition calls reporters with news tips. Identify 5-10 reporters (the environment desk nationally, plus the regional correspondents). **Call** first (messages get buried): "I saw your coverage of [similar conflict]. We have a similar situation in [place] and I think your readers should know. Do you have 20 minutes this week?" Then build the relationship over months — send them a relevant document, a data tip, a milestone update — so that by the time you have a big story, they already know you.

### Sample Media Timeline

- Month 1: establish relationships (call five reporters; get on their radar)
- Month 2: first story (petition results)
- Month 3: press conference releasing the study; expert available
- Month 4: committee/coalition announcement
- Month 5: hearing-testimony coverage
- Month 6: consultation-decision coverage

### Real Media Dynamics (Korean grounding)

- **The record beats the press release:** the Jeju fight was carried for years by reporting grounded in the assessment record — each return, supplement demand, and rejection was a national story because the documents existed and opponents kept feeding them to the desks that cared.
- **A human story shifts politics:** the Seongsan farmer under the flight path, the Miryang grandmothers under the 765kV towers — Korean siting conflicts move national opinion when the affected person, on their land, becomes the image of the fight.
- **Scientific credibility beats agency claims:** an independent, expert-backed survey that contradicts the proponent's draft lets media write "the ministry's own reviewers found the data lacking," and the consultation desk reads those stories too.

### Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that omits your argument, or no decision-maker response.

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## HOW THE FIVE STEPS COMPOUND

Now that all five steps are on the table, here is how they stack — and which ones carry the most weight when combined.

### Effectiveness Visualization

#### SUCCESS PROBABILITY (Approval Modified/Denied/Withdrawn)

##### CLEAN DECISION SCENARIO:

All 5 Steps Combined:  65-75%

4 Steps Combined:  55-65%

3 Steps Combined:  45-55%

2 Steps Combined:  30-40%

Single Step:  5-20%

##### WITH MODERATE TILT FACTORS:

(A promoter-approval-agency, or a proponent-funded assessment under time pressure)

All 5 Steps Combined:  40-45%

4 Steps Combined:  30-40%

3 Steps Combined:  20-30%

2 Steps Combined:  15-25%

Single Step:  3-12%

##### WITH SEVERE TILT FACTORS:

(A national-policy project with presidential backing and compressed review)

All 5 Steps Combined:  25-30%

4 Steps Combined:  18-24%

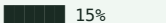
3 Steps Combined:  12-18%

2 Steps Combined:  8-15%

Single Step:  2-8%

**One important exception:** where the documented defects are grave enough that the environment ministry's own reviewers cannot sign off — bird-strike data missing at an airport site, endangered-species surveys omitted — the consultation gate has stopped even presidentially backed flagships, because the ministry's concurrence is a legal precondition no political schedule can skip. Jeju's second airport sat frozen from 2019 to 2023 on exactly this.

## Step Importance Ranking (When All Combined)

1. **OPPOSITION BUILDING** (Step 3)  25%  
Why: creates political pressure, visible to decision-makers, enables other steps
2. **DOCUMENTATION** (Step 2)  22%  
Why: provides ammunition for legal/media, grounds opposition in facts
3. **MEDIA STRATEGY** (Step 5)  20%  
Why: makes opposition/legal/documentation visible, creates political cost
4. **LEGAL CHALLENGES** (Step 4)  18%  
Why: buys time, creates regulatory/court pressure — and in Korea aims the consultation gate
5. **TARGET ID** (Step 1)  15%  
Why: foundation — if wrong, everything fails

**Real insight:** a large, organized, visible community — the village committees, the fishing cooperative, the countermeasure committee (daechaek wiwonhoe) standing together — is more persuasive than perfect documentation or brilliant legal arguments on their own. Every Korean reversal was carried by organized residents first; the paperwork gates then did their work.

## SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and factual — that is what gets read and acted on. File formal submissions through the designated channels (the assessment opinion window, minwon petitions, open.go.kr for records) and keep the receipt or case number every time. The legal-challenge letter and press release are kept here as 8F and 8G.

### 8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – decision due [date]

Hi [Reporter name],

I follow your coverage of [beat / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [independent survey / new record] shows [quantified finding – e.g. "protected-species habitat inside the project site that the draft assessment never surveyed"], and [the environment ministry's consultation decision / the approval] is due [date].

Why it's newsworthy: it's new (just released), specific (affects [# people / hectares / species]), and time-sensitive (decision [date]).

I can send the full survey and connect you with [one named expert] for an interview. Would a quick call this week work?

Thanks,  
[Name] – [Organization] – [phone] – [email]

## 8B. Email / letter to a decision-maker

Subject: Please [return the assessment / impose conditions] on [project] – [file no.]

Dear [Assembly Member / Council Member / Governor / Minister] [Name],

I am a resident of [district] writing about [project], file [number], now before [the approval agency / the environment ministry's consultation], with a decision expected [date].

The concern, briefly: [one or two specific, quantified harms – e.g. "the draft assessment contains no wintering-season bird survey for a site on a migratory corridor, and its own text admits [quote]"].

I am asking you to [specific, achievable action – e.g. "formally request that the consultation demand supplementation of the seasonal surveys," or "support binding conditions: a 1-km school buffer, a night-work prohibition, and a resident-participating monitoring committee with published data"].

[If true:] [#] residents have signed a petition to this effect, and these organizations share the position: [list].

I would welcome a meeting and can provide our full documentation.

Respectfully,  
[Name], [district], [phone], [email]

## 8C. Public comment submission (written opinion on the assessment)

Subject: Written opinion – [project name], [file number]

To: [the proponent / approval agency's designated opinion channel, per the draft-disclosure notice – keep the receipt]

Re: Opinion on the [strategic / project / small-scale] environmental assessment of [project], file [number]. Opinion window closes [date].

1. Who I am: [name / organization / village], [address within the affected area], [interest in the project].
2. Specific observations, with evidence:
  - a. [Observation – e.g. seasonal survey gaps]. The draft [omits / underestimates] this. Evidence: [your baseline / expert survey; the draft's own admission, quoted]. This falls short of [the assessment act's content requirements / the statutory noise or water standard].
  - b. [Observation 2 – cumulative effects, the affected-area boundary, health]. Evidence: [...].
3. What I am asking for: [that consultation demand supplementation / return the study on [issue]; OR that these binding conditions be imposed: [list]].  
[If applicable:] Thirty or more residents of the affected area hereby demand a public hearing under the Act.

Please register this opinion in the assessment record and reflect it in the consultation documents.

[Name] – [Organization] – [contact]  
Attachments: [baseline report / impact analysis / health-economic analysis]

## 8D. Coalition outreach email (to an organization)

Subject: [Organization] + [project] – a specific ask that fits your mission

Hi [Leader name],

I'm [name] with [committee] in [place]. We're working on [project], which [one-line stake]. I'm reaching out because this connects directly to [organization]'s work on [their mission / issue].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your mission: [tailored ask – e.g. "an ecological review of the draft assessment," or "a written opinion filed as the fishing cooperative holding the affected rights by [date]," or "co-leading the school-noise message"].

If helpful, I can send a one-page brief and hop on a 20-minute call.

Thanks for considering it,  
[Name] – [Organization] – [contact]

## 8E. Records request (Official Information Disclosure Act)

Subject: Information disclosure request – [project]

To: [the entity], via the national portal ([open.go.kr](http://open.go.kr)) or its information disclosure officer

Under the Official Information Disclosure Act, I request the following records concerning [project / file number]:

- correspondence between [the approval agency] and [proponent / consultants], [date] to [date];
- the full assessment drafts, the reviewers' opinions, and the consultation documents;
- records of meetings between [officials] and [proponent];
- [any specific document you know exists – the demand forecast, the supplementation demands, the post-construction monitoring reports].

The Act provides ten days to respond (extendable once by ten). Please provide records electronically. If any record is withheld, cite the specific statutory exemption; a denial is appealable.

[Name] – [address] – [email]

## 8F. Legal challenge skeleton (administrative appeal / revocation suit)



NOTE: In Korea most challenges to an approval are REVOCATION SUITS in the administrative courts – generally within 90 DAYS of learning of the disposition (one-year outer limit) – optionally preceded by an administrative appeal. Where harm is imminent, move to SUSPEND EXECUTION immediately. Deadlines are SHORT – confirm the exact window with counsel now. The organizations named in Step 4 act pro bono.

[ADMINISTRATIVE APPEAL / COMPLAINT FOR REVOCATION] OF [DISPOSITION]  
[Date]

TO: [The administrative appeals commission / the administrative court]  
RE: [disposition], [approval / file no.], dated [date]

PLAINTIFF(S): [Residents of the assessed affected area / organization through affected members]  
Contact: [Name, phone, email, address]  
Standing: [resident(s) within the assessment's affected area – presumed]  
OR [outside the area, with concrete individual harm: (specify)]

DISPOSITION UNDER CHALLENGE: decision-maker; what was approved; date; clock.

GROUND(S):

1. [Procedural defect] – e.g. "the approval was finalized before the environmental consultation concluded / the public hearing demanded by thirty residents was never held / the opinion window was cut short." Provision: "[cite]." The record shows: "[quote]."
2. [Assessment defect] – the assessment omitted mandatory surveys and analyses on which the consultation had to be based (seasonal wildlife surveys, cumulative effects), rendering the disposition unlawful.
3. [Substantive illegality] – breach of statutory standards, protected-area rules, or the consultation's own binding conditions.
4. [Constitutional frame] – Article 35's environmental right, argued through the statutes above.

RELIEF SOUGHT: revoke the disposition; [where harm is imminent] suspend its execution pending judgment.

Signature / date

ATTACHMENTS: the disposition; the assessment (key pages); the filed opinions and receipts; applicable statutes; expert reports; maps / photos.

## 8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]  
[Subtitle: consequence + timeliness]

[DATELINE: City / Date]

[LEAD – answer "why now?"]  
[Local committee] released [survey / findings] today showing [specific finding] affecting [# of people / hectares / species].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]  
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; comparison to a documented Korean case – e.g. the Jeju second airport assessment, returned and rejected four times on survey gaps like these]

[DECISION POINT – create urgency]  
[The environment ministry's consultation / the approval agency] decides on [date]. The opinion window closes [date].

[CALL TO ACTION] To file an opinion: [how]. For more: [contact].

CONTACT: [Name / Organization / Phone / Email]

ATTACHMENTS: full survey, technical summary, methodology, maps, Q&A

## 8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the budget branches, and the consultation-gate path, which is often the strongest lever in Korea.

## SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

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**What this means.** A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because they depend on the industry’s money or jobs, rely on the proponent’s own information, or face strong political pressure to say yes. It rarely means anyone broke the law. Here is how it works — and how communities win anyway.

### Important Caveat

This section describes patterns from documented Korean cases and public records — the development-state coalition, promoter-approval agencies, national-policy fast-tracking, compensation-driven coalition-splitting, and the legal counterattacks on protest. It is not a statistical claim about “X% of all decisions.” Read it as: “where these patterns appear, here is what happens and what it means for opposition.”

### What This Tilt DOES (and DOESN’T DO)

**DOES:** create institutional momentum for approval (construction as growth policy; ministries and public corporations as promoters; local governments hungry for projects); bias information (proponent-funded assessments on compressed schedules); advantage well-resourced parties; and arm proponents and the state with **obstruction-of-business complaints, damage suits, and heavy policing** of site protest, so that opposition on the ground becomes a legal risk for participants. **DOESN’T:** guarantee approval; make opposition impossible; remove the consultation gate (a legal precondition in a different ministry’s hands); disable the audit board, the referendum, or the courts; or prevent delays, modifications, and political costs. The biggest reversals in modern Korea happened *inside* this tilted system.

**Analogy:** a tilted system is like playing against a team that owns the referee. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, so other observers see the bias.

### Documented Korean Dynamics

**The fast-tracked flagship (Four Rivers).** The Four Major Rivers Project — a nationwide re-engineering of the Han, Nakdong, Geum, and Yeongsan — was driven from the presidential level and moved through planning and assessment at extraordinary speed over massive civil-society objection. It was built. And then the state’s own **Board of Audit and Inspection examined it repeatedly across successive administrations** — audits that faulted its process and economics — and the later monitoring record (algal blooms, water quality) fed government decisions to open weirs and partially dismantle two of them. **Lesson:** a fast-tracked project can outrun the review going in, but the oversight layer never closes; the audit petition and the monitoring record are how a “finished” project stays contestable.

**The consultation gate holds (Jeju, Garolim).** Even flagship projects have been frozen or killed at the environment ministry’s desk when the record showed the surveys weren’t done — Jeju’s four adverse rulings, Garolim’s repeated returns until the project lapsed. **Lesson:** the tilt lives mostly in the *promoting* agencies; the reviewing gate answers to the record, which is the thing you control.

**The compensation machine and the split community (Miryang).** The 765kV transmission line through Miryang was built over years of resistance by elderly farmers — a fight marked by heavy policing, deep community division over compensation, and national anguish. The towers stand; the fight also produced a new statute (the 2014 transmission-corridor compensation law) and changed how the grid operator approaches siting. **Lesson:** the compensation machine splits communities village by village — the no-separate-settlement discipline of Step 3 exists because of fights like this — and even a lost siting battle can force systemic change.

**The electoral fact (Samcheok).** Where a project’s politics run through a local government, the referendum converts sentiment into arithmetic: Samcheok’s 2014 vote against the nuclear plant — overwhelming on a large turnout, formally advisory — made the plan untenable, and it disappeared from national energy planning in the 2017 policy shift. **Lesson:** when the ballot is available, use it; no ministry schedule survives contact with an election.

### Assessment Framework — Determine Your Situation

**GREEN FLAG (low tilt):** the approval agency is not the promoter; the assessment schedule allows full seasonal surveys; the consultation is genuinely open; a clear procedural defect exists; local politics are contestable. → 65-75% with all 5 steps. Proceed with standard opposition.

**YELLOW FLAG (moderate tilt):** promoter-approval agency; compressed assessment; high approval rate; local government invested; legal case arguable but not clear-cut. → 40-45% with all 5 steps; often win modifications even if not a refusal. Proceed; prepare for multiple outcomes; prioritize the consultation gate and conditions.

**RED FLAG (high tilt):** national-policy project with a presidential completion date; assessment visibly outrunning its surveys; compensation machine already splitting villages; complaints already filed against leaders. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/modification justifies the investment; lead with the consultation gate and the audit petition (the levers that have actually held in this scenario); protect leaders deliberately; build power for the next fight — including the next election.

## Direct Action: Factual Information (Descriptive, Not Prescriptive)

When legal and political paths are exhausted, some Korean communities have engaged in direct action — the decade of resistance at **Gangjeong** village against the Jeju naval base (daily blockades at the gates, mass arrests and fines; the base was built), the **Miryang** tower-site occupations by elderly residents (cleared by large police operations), and site sit-ins in siting conflicts across the country. This is descriptive of what has occurred, not guidance.

**Documented consequences under Korean law:** participants face **obstruction-of-business (eommu banghae)** and obstruction-of-official-duty charges, fines that accumulate per incident, civil **damage suits** by proponents, and — as Gangjeong showed — years of criminal and civil aftermath for a village (a later presidential pardon and debates over the state's damage claims followed). A record affects employment and travel. Direct action has produced delays and enormous public attention in documented cases, but on its own has rarely stopped a project permanently; combined with legal and organizing work it has been more consequential. Anyone weighing participation should understand these specific risks — including the per-incident accumulation of charges and the proponents' damage-suit practice — and be connected to legal defense (Minbyun, GongGam) **before**, not after.

**A security-culture note — the aboveground/underground line.** Security writers in the resistance literature draw one hard distinction that everyone weighing any form of action should understand. Everything in this guide — the filings, the coalitions, the hearings, the media work — is **aboveground** organizing, and it only works in the open: "There is no way to effectively do aboveground work and keep your identity hidden... Aboveground movements can only build numbers and public solidarity by being public, open, and expressing support of the movement"

([dgrnewsservice.org/civilization/repression/an-introduction-to-security-for-activists-organizers-and-revolutionaries/](http://dgrnewsservice.org/civilization/repression/an-introduction-to-security-for-activists-organizers-and-revolutionaries/)). The same literature is equally blunt about the choice itself: "every person in a resistance movement must decide for her- or himself whether to be aboveground or underground. It is essential that this decision be made; to attempt to straddle the line is unsafe for everyone" ([dgrnewsservice.org/resistance/organizational-structures-for-resistance-movements/](http://dgrnewsservice.org/resistance/organizational-structures-for-resistance-movements/)).

Whatever any individual decides, mixing the two modes endangers both that person and everyone organizing beside them — an aboveground campaign is safest, strongest, and most credible when it is exactly what it appears to be.

## Honest Assessment

Where the system is tilted, opposition using legal and political methods has lower odds of an outright stop — but still reliably delays projects (often years), forces modifications and mitigation, imposes political cost, builds durable community power, and creates a record for the oversight layer. And in Korea, the consultation gate, the audit board, and the ballot mean that even presidentially backed projects have been frozen, reshaped, or unwound — before construction at Jeju and Garolim, after "completion" on the Four Rivers. Neither scenario makes opposition futile — but in the red-flag scenario, protect your people as deliberately as you fight the project.

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## SECTION 10: WHEN IT'S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

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Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. In Korea it is not hypothetical: the country's development history is punctuated by land-development scandals in which insiders positioned themselves around decisions — the LH land-speculation scandal and the Daejang-dong development affair being the recent national reference points, both exposed, both followed by investigations and prosecutions. Where corruption exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. Handle it carefully: the same facts that can sink a project can expose you to a criminal-defamation complaint if you get them wrong.

**How big is the problem?** The most widely cited figure comes from the World Economic Forum: corruption costs at least **US\$2.6 trillion a year — about 5% of global GDP** — a figure cited before the UN Security Council. Because it is a percentage, the dollar amount grows with the world economy: applied to 2022 global GDP (~US\$101 trillion) it works out to roughly **US\$5 trillion a year**, and a January 2026 Baker Tilly analysis, with global GDP projected at ~US\$115 trillion for 2025, puts it at approximately **US\$5.75 trillion annually**. Roughly one dollar in twenty moving through the world's economy is lost to corruption — and land development, as LH and Daejang-dong showed, is where it concentrates in Korea.

## What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and kickbacks** — money, jobs, or favours in exchange for a decision or a permit.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden financial stake in the outcome (land near the site, shares in the developer, a contract, a family member employed by the company).
- **Insider land speculation** — acquiring affected land using non-public knowledge of a coming designation or route (the pattern at the heart of the LH scandal).
- **The revolving door** — officials moving between the ministries, the public corporations, the developers, and their consultants.
- **Improper gifts, hospitality, or entertainment** flowing from a proponent to the people deciding its project (the Improper Solicitation and Graft Act — the “Kim Young-ran Act” — sets the bright lines).
- **Rigged development structures** — private participants engineered into outsized profits from a public development (the Daejang-dong pattern).
- **Falsified or suppressed assessments** — a consultancy delivering a predetermined result, or officials burying adverse findings.
- **Procurement fraud, nepotism, and cronyism** — steering contracts or approvals to insiders.

## Red flags to watch for

- A decision that overrides the technical reviewers’ findings with thin or shifting reasons.
- Sudden reversals, rushed timelines, or an approval pushed through quietly.
- A decision-maker who did not disclose a relevant interest, or who should have recused and didn’t.
- Off-record meetings between the proponent and decision-makers.
- Land near the site changing hands — especially to officials’ relatives or shell companies — before the designation became public. (The **Corporate & Ownership** lens lists the company and beneficial-ownership registries.)
- Gifts, entertainment, or post-retirement jobs flowing from the proponent to decision-makers or their families.
- The same small circle of firms, consultants, and officials recurring across decisions.
- Missing minutes, unusual redactions, “lost” records, or stonewalling of disclosure requests.

## How to document and investigate it (follow the money — carefully)

- **Information-disclosure requests** (open.go.kr) for correspondence, calendars and meeting logs, consultant contracts, and internal assessments.
- **The public officials’ asset declarations** that senior officials must file annually (published in the official gazette) — compare holdings against the project’s geography.
- **The land registry (deunggibu) and building registers** — who bought what, when, near the site; corporate shells trace through the corporate registry.
- **The procurement record (the national e-procurement system)** — which firms win the project’s contracts, for how much. (The **Contracts & Money** lens lists the procurement databases.)
- **Minutes, agendas, and voting records** — compare the decision to the technical recommendation.
- **Build a timeline:** interest or relationship → purchase or meeting → designation or decision. Corruption is almost always shown by **pattern and timing**, not a confession — the LH scandal broke on exactly this kind of land-purchase timeline work.
- **Whistleblowers** often break these stories. Korea’s **Public Interest Whistleblower Protection Act** provides protection and monetary rewards through the ACRC; understand the procedure before asking anyone to come forward.

## The legal lever: bias can void a decision (even without proof of a bribe)

Korean administrative law requires impartial exercise of discretion, and public-official conduct rules require recusal for conflicts; a disposition shaped by a decision-maker’s undisclosed interest or improper contact is challengeable in the revocation suit, independent of any criminal case — and the graft act’s bright-line rules mean the *contact itself* can be the violation. So documenting an undisclosed interest is not only a media story — it can be a **legal ground against the decision itself**, alongside the official’s disciplinary and criminal exposure.

## Where to report it

- The **Anti-Corruption and Civil Rights Commission (ACRC)** — the national corruption-report and whistleblower-protection channel.
- The **Board of Audit and Inspection** — including by the 300-citizen **audit request**.

- The **prosecution service and police** for bribery, breach of trust, and graft-act violations.
- The **National Assembly** — a member can demand records and put officials under oath at audit.
- **Investigative outlets** — Newstapa, the national dailies' investigative desks — in parallel with the official channels.

## Strategy: exposing a tainted process can beat a project

The clearest recent Korean examples are the land-development scandals. The **LH affair** — employees of the state land corporation buying land around unannounced new-town sites — ignited national outrage in 2021, triggered investigations, resignations, and reform legislation, and put every development designation under a new lens. The **Daejang-dong** affair — a public development structured so private insiders reaped extraordinary profits — was broken by journalists, consumed national politics, and produced years of prosecutions. A credible, documented corruption story triggers investigations; it can void decisions and destroy the political coalition behind a project; it flips media coverage; and it makes every official touching the file cautious. **Exposing a tainted process is often more powerful than arguing inside it.**

## Do this responsibly — and safely

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind defamation.** Korea criminalizes defamation — including, in some circumstances, true statements, with public-interest defenses — so publicly accusing a named person is legally dangerous without counsel. Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through official channels in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers and sources** — and route them to the ACRC's statutory protections.
- **Don't cry "corruption" without evidence.** Calling ordinary, lawful bias (Section 9) "corruption" destroys your credibility and can expose you to prosecution. Keep the two separate — which is exactly why they are separate sections here.

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## Corruption Isn't One Thing — Map It by Actor

The section above treats misconduct as one category. It usually sits in specific institutions, and which institution is compromised changes what you can rely on. Before staking a campaign on the courts, the hearing, or an audit body, assess how clean each actor in your project's chain is — from your own knowledge, the reporting in the Watchdogs lens, and the country's corruption record.

Rate each link, and note what capture tends to look like:

- **Planning commission / environmental authority (approves the project).** Signs: studies passed without scrutiny, conditions never enforced, a large project split into small pieces to dodge assessment. If this body is compromised, the administrative route is weak — move earlier to the courts and to public pressure.
- **Local council / municipality.** Signs: rushed zoning changes, land deals, a mayor who is also the project's advocate. If the municipality is the problem, the higher level of government and the courts become the arena, and the conduct itself becomes evidence.
- **The judiciary (judges and clerks).** The decisive link. Where judicial processes are captured or routinely corrupt, a technically strong court argument still should not be expected to win — a compromised court can ignore precedent, delay an injunction until the site is cleared, or rule against the evidence. Where that is the reality, use litigation to buy time and build a record, and put the real weight on political cost, media, higher or appellate courts, and outside bodies (regional human-rights systems, international finance-standard complaints) beyond the local court's reach.
- **Police and prosecutors.** Signs: charges against protest leaders, silence on the developer's violations. This affects how you organise — assume protest may draw legal harassment, keep everything lawful and documented, and arrange defence counsel before you need it (see the security-culture note in the direct-action section).
- **Legislators / provincial or national government.** Signs: laws rewritten to favour a project, protections repealed, "strategic project" designations that fast-track approval. When the rules themselves are being changed, defending the existing law — and any non-regression principle — becomes the fight.
- **Federal / national agencies.** Signs: a permit issued over the technical staff's objections, an inspectorate that does not inspect. If the national regulator is compromised but the courts or an audit body are not, route around it.
- **The developer and its consultants.** The private side: a study written to a set conclusion, undisclosed ties between an "independent" consultant and the proponent, movement of staff between company and regulator. This link is often the most documentable, and exposing it can undo a decision the public bodies would not have questioned.

Rate each actor green (reliable), yellow (compromised, use with caution), or red (captured — do not stake the campaign



on it), then aim at the cleanest remaining lever. A captured planning commission with clean courts points to litigation; clean media with everything else compromised points to a public and political fight whose aim may be to raise the cost and build a record for the next project. Where the capture involves unlawful conduct, it is no longer only a barrier — it is the corruption case in the section above, and often the project's greatest vulnerability.

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## INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

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### Realistic 12-Month Campaign Timeline

**Months 1-2 — Foundation + Documentation:** identify the target (Step 1); begin baseline surveys in the right seasons (Step 2); begin organizing one-on-ones and form the countermeasure committee (Step 3); file first information-disclosure requests, watch EIASS, first reporter calls (Steps 4-5). *Outcome:* structure forming, record beginning.

**Months 2-3 — Public Launch:** baseline complete; community forum + petition; compel the public hearing if the window is open (Step 3); media event (Step 5). *Outcome:* opposition visible, 1,000+ signatures, 3-5 stories.

**Months 3-4 — Coalition + Impact Analysis:** complete impact analysis (Step 2); expand the committee to 5-10 organizations with the no-separate-settlement clause (Step 3); file written opinions in the statutory window and meet the reviewing office (Step 4); data-release press conference (Step 5). *Outcome:* broad coalition, defects on the assessment record, coverage expanding.

**Months 4-6 — Expansion + Health Data:** health/economic report (Step 2); sustained monthly vigils (Step 3); the citizens' audit request filed if the economics warrant, litigation prepared against the 90-day clock (Step 4); expert pressers (Step 5). *Outcome:* 10+ organizations, quantified impacts, regional and national media.

**Months 6-9 — Escalation + Litigation:** disciplined escalation (Step 3); the revocation suit and suspension motion if the disposition issues; consultation-gate submissions continuing (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, court process live.

**Months 9-12 — Peak Pressure + Positioning:** maintain opposition (Step 3); hearings/consultation-decision/consent-stage positioning — and, where the politics run local, the referendum or the election (Step 4); media momentum (Step 5). *Outcome:* legal + opposition + media compound; supplementation, return, conditions, or withdrawal.

### Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); a village or rights-holder opening separate compensation talks (the classic split); no media coverage for 2-3 months (media strategy failing); the legal challenge stalling; fundraising below half your target by month 6; a core organizer leaving without a successor; complaints or summonses arriving against leaders (activate the legal-defense relationship immediately); or someone new pushing violence. Each has a fix earlier in this guide — catch it early and the campaign holds.

### Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — “return the assessment for the missing wintering survey before consultation concludes,” not “we oppose the airport.”
  2. **Multi-tactic pressure** — legal + opposition + media together, not one alone.
  3. **Long-term organizing** — sustain 12+ months; prevent burnout; work with the fishing and farming calendar.
  4. **Documentation first** — build the evidence, then organize and litigate on it (the Jeju lesson).
  5. **Coalition building** — 5-10 diverse organizations, the no-separate-settlement clause, and the rights-holders (the eochongye, the affected-area residents) at the centre.
  6. **Political pressure, not just legal** — law buys time; opposition and media create political cost; the ballot converts both into arithmetic.
  7. **Aim at the gates that can say no** — the consultation desk, the audit board, the courts, the referendum; the promoting agency will never stop itself.
  8. **Protect your leaders** — collective, minuted decisions, rotating spokespeople, legal defense arranged before it's needed.
  9. **Realistic expectations** — expect conditions/modifications/delay; a return, rejection, or withdrawal is the bonus.
  10. **Persistence** — plan for 12-24 months and keep momentum; Jeju's opposition has held for a decade, and the Four Rivers record shows the fight continues even after “completion.”
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# FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

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## Real Outcomes: What Winning Looks Like

- **Approval refused / project frozen or lapsed** (rarer): usually requires overwhelming opposition + documented assessment defects + heavy media. Korean examples of “inevitable” projects stopped or frozen: the **Jeju second airport** (four adverse assessment rulings, 2019-2021; frozen for years, still contested at the provincial stage), **Garolim Bay tidal** (assessment repeatedly returned until the project lapsed), the **Samcheok nuclear plant** (shelved after the 2014 referendum and dropped in the 2017 policy shift).
- **Project modified** (most common victory): route and siting changes, buffers, night-work prohibitions, binding consultation conditions, resident-participating monitoring with published data, compensation reform — and, as Miryang showed, sometimes a new statute.
- **Delay / attrition**: frozen for years while the assessment cycles through supplements and returns; forecasts age, budgets balloon, politics change; the proponent sometimes walks away or the next government drops it.
- **Defeat**: the project proceeds. Focus then shifts to compliance monitoring (the post-construction monitoring duties, the mediation commissions for measured harms), the audit petition, the next legal opening — the Four Rivers afterlife is the proof that “finished” is not final.

## Why It's Worth It — Even If You Ultimately Lose

Be honest with your community about the odds — and equally honest about what the “secondary” outcomes are actually worth, because they are not consolation prizes:

- **Conditions and monitoring protect bodies for decades.** A night-work prohibition, a school buffer, a resident-participating monitoring committee with published data — these are measured in children's sleep and the coast's catch, for the life of the project. Every binding condition you force is future harm partially averted.
- **Delay is real harm avoided — and real leverage.** Every year an assessment cycles through supplements is a year the valley and the fishery run — and delay compounds against the proponent: aging forecasts, ballooning budgets, changing governments. Garolim simply lapsed; other “delayed” projects never came back.
- **The organization outlives the fight.** The countermeasure committee, the trained monitors, the relationships with lawyers, reporters, and assembly members — that infrastructure fights the next designation, the next route, the next election. Communities that fought “losing” siting battles are the ones that win the next one.
- **You change the rules for everyone.** Miryang's towers stand — and the fight produced the 2014 transmission-corridor compensation statute and changed how the grid operator sites lines. The Four Rivers objections “lost” — and became the audit record that opened the weirs. Campaigns lose projects and win architecture the whole country then uses.
- **You raise the price of the next project.** A proponent that spent years in supplements and hearings prices the next community's resistance into every plan — and sometimes doesn't start. Deterrence is invisible and real.
- **Compensation and dignity are not nothing.** The mediation commissions monetize measured harms; documented communities win remediation and terms silent ones never see — and a community that has organised once is better prepared the next time.

## Decision Point: Continue, Modify, or Reassess

**Continue** if the legal challenge is on schedule, opposition is holding or growing, media is at least monthly, the committee is stable, and the consultation or consent decision is more than three months out. **Modify** if attendance is declining, coverage has dropped for 2+ months, a member is negotiating separately, the legal challenge has stalled, or you discover the system is more tilted than assessed. **Reassess** if, after ~12 months, legal and political options are exhausted, the decision appears settled despite real effort, the community is exhausted, or resources are depleted. In reassessment, ask: has opposition already won partial victory (conditions, delay, a monitoring regime)? Would continued effort win more, or just prolong the fight? Should energy shift to compliance monitoring, to the next decision (the consent stage, the next election, the audit), or to broader systemic change?

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## The Bottom Line

Opposition work can stop or significantly modify destructive projects in South Korea — even where the development-state machine is fully behind them. Opposition creates multiple, compounding forms of pressure: legal, political, media, and community. Where the tilt is severe, an outright stop is less likely, but opposition still delivers delays, modifications, political costs, and durable power.

And Korean law provides a powerful floor: an assessment gate in a different ministry's hands that answers to the record, an audit board 300 citizens can summon, courts that presume affected residents' standing, an information-disclosure

regime that opens the files, and a ballot that turns siting into arithmetic. Time and again, determined communities — Seongsan’s farmers, Samcheok’s voters, the valleys and coasts that refused to sign — have frozen, reshaped, or unwound what was supposed to be unstoppable.

Know your situation. Assess how tilted the system is, honestly. Choose your strategy accordingly. Then organize — with eyes open to both the possibilities and the barriers.

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*Nothing here is legal advice. The assessment, standing, and defamation landscape evolves — every organization named in this guide gives current advice; ask them before relying on any deadline or doctrine.*